

		Each counsel will be able to present their evidence to support their position. The Court orders the Defendant to be present in court. If the Defendant is unable to be present in court, an ex parte motion requesting remote appearance and the basis is to be filed with this Court at least 5 court days in advance of the hearing date. The Court set this matter for an evidentiary hearing on the Motion to Vacate for October 21, 2026 at 1:30 PM in Department C61. The Court Clerk is to provide notice of the Court's ruling.
6	30-2026-01592499 Mahgerefteh vs. Hawes	The Court has read and considered the Motion to Quash Service of Summons (ROA 13) and Plaintiff's Opposition (ROA 19). As this matter requires an evidentiary hearing as to the merits, as there is no rebuttable presumption, and as the person who served notice is not a registered process server, the Court will set this matter for an evidentiary hearing on 9/23/2026 at 1:30 PM in Dept. C61. Parties are ordered back for that date.
7	30-2026-01590215 TMP II Apts LLC vs. Lacy	The Court has read and considered the Defendant's Motion to Quash Service of Summons (ROA 7) and the Plaintiff's Opposition (ROA 18). The Court takes Judicial Notice of the Proof of Service of Summons-Personal (ROA 13). The Defendant filed the Motion to Quash Service of Summons as a boilerplate motion, without changing the information in the motion or providing relevant facts for this case. Filing a frivolous motion with the Court may warrant monetary sanctions. The Court finds the Motion frivolous because Defendant did not provide any facts related to this case in the motion and failed to review it for accuracy before submission. California Evidence Code Section 647 creates a rebuttable presumption that a proof of service signed by a registered process server is true. It shifts the burden of proving lack of service to the defendant, rather than requiring the plaintiff to prove proper service. Here, ROA 13 shows that a registered process server effectuated personal service on the Defendant on 8/21/2026 at 7:32 AM. Defendant provides no evidence to rebut the presumption under Evidence Code section 647. The Court DENIES the Motion to Quash Service of Summons. Defendant is ordered to file a responsive pleading within 3 calendar days. The Court orders a shortened time period because Defendant filed a frivolous motion. Plaintiff is ordered to provide notice of the Court's ruling.
8	30-2026-01587609	The Court has read and considered the Defendant's Motion to Quash Service (ROA 16) and the Plaintiff's Opposition (ROA 22).